

Human Services (Complex Needs) Act 2009

Instrument of delegation

Interpretation

In this instrument:

Act means the *Human Services (Complex Needs) Act 2009*.

Area Director means a Director with the word 'Area' in their title.

department means the Department of Health and Human Services in the State of Victoria.

functions and powers means the functions, powers and discretions (as the case may be) of the Secretary to the department under the provisions of the Act specified in column 1 of the Schedule.

limitations means the limitations or conditions, if any, respectively specified in column 4 of the schedule.

officers means the persons named in or for the time being holding, acting in or performing the duties of the respective offices or positions in the department specified in column 3 of the schedule.

Operational Division means each of the following divisions of the department: East Division, West Division, North Division and South Division.

schedule means the attached schedule to this instrument, which forms part of this instrument.

Service Agreement means any contract or agreement administered through the department's Service Agreement Management System (SAMS).

Description

descriptions in column 2 of the attached schedule are for ease of reference only. They do not affect the interpretation of nor limit the delegation of the functions and powers contained in the statutory provisions specified in column 1 of the schedule.

Delegation

I, **Kym Peake**, Secretary to the Department of Health and Human Services, acting under section 6 of the Act:

- (a) **DELEGATE** the functions and powers to the officers specified in column 3 of the schedule; and
- (b) **REVOKE** the previous instrument of delegation made by the Secretary to the Department of Health and Human Services under the Act dated 15 April 2016.

Commencement

This instrument commences on the date it is signed.

Signed at Melbourne in the State of Victoria

This 17th day of July 2017

Kym Peake

Secretary

Department of Health and Human Services